

26NWCV00561 26NWCV00561

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Case Number: 26NWCV00561 Hearing Date: June 23, 2026 Dept: L

Plaintiff Tae Kyoung Hwang's Applications

for Writ of Attachment as to Defendants Bella Assets, LLC, Bloomfield MGMT, LLC,

and Won Suk Kim Real Estate, Inc. are GRANTED.

Plaintiff is ordered to post a

\$10,000.00 undertaking for each Application.

Plaintiff must submit amended

Right to Attach Orders reflecting the corrected amount to be attached with the

proper interest calculation based on today's hearing date.

Plaintiff to give notice.

Background

This is an action for breach of

contract. On February 17, 2026, Plaintiff Tae Kyoung Hwang ("Plaintiff") filed

this action against Defendants Wonnie Won-Suk Kim ("Kim"), Erica Eun Ah Kim ("Erica"),

Bella Assets, LLC ("Bella"), 13330 Bloomfield MGMT, LLC ("Bloomfield"), Won Suk

Kim Real Estate, Inc. ("WSKRE"), (collectively, "Defendants") and Does 1 to 20.

The Complaint alleges that Defendants "obtained monies from various individual lenders and/or investors to pay their other lenders and/or investors with promise unfounded guarantee of return of an annual interest income." (Compl., ¶ 18.)

The Complaint alleges that, on November 21, 2025, Plaintiff loaned Bella \$300,000.00, as a conduit for Kim. The loan was evidenced by a promissory note ("Note"). (Compl., ¶ 19, Exh. A.) The loan was secured by a Second Deed of Trust on real property located at 15917 Prairie Ave., Lawndale, CA 90260. The Note stated that Bella agreed to pay Plaintiff an interest payment of \$3,500.00 per month. On December 12, 2026, Plaintiff demanded return of his money when he found out that Kim and Bella were having financial issues and would not be able to pay the interest payments. Defendants thereafter failed to pay back all interest payments and the unpaid balance when due (January 5, 2026).

The Complaint alleges the following causes of action: 1) Breach Of Contract (Promissory Note), 2) Account Stated, 3) Open Book Account, 4) Fraud - Promissory Fraud, 5) Fraud – Concealment, 6) Civil Conspiracy Fraud, 7) Alter Ego, and 8) Constructive Trust.

On April 2 and 3, 2026, default was entered as to all Defendants.

Plaintiff now applies for three

Writs of Attachment as to all the property of Defendants Bella, Bloomfield, and

WSKRE. The amount to be secured by the attachment is \$324,500.00.

No oppositions have been filed as

of June 22, 2026.

As the three Applications for

Writ of Attachment are identical, the Court will address them concurrently.

Legal Standard

“Upon the filing of the complaint or at any time thereafter,

the plaintiff may apply pursuant to this article for a right to attach order

and a writ of attachment by filing an application for the order and writ with

the court in which the action is brought.” (Code Civ. Proc., § 484.010.)

The application shall be executed under oath and must

include:

1. a

statement showing that the attachment is sought to secure the recovery on a

claim upon which an attachment may be issued;

2. a

statement of the amount to be secured by the attachment;

3. a

statement that the attachment is not sought for a purpose other than the

recovery on the claim upon which the attachment is based;

4. a

statement that the applicant has no information or belief that the claim is

discharged or that the prosecution of the action is stayed in a proceeding

under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

5. a

description of the property to be attached under the writ of attachment and a

statement that the plaintiff is informed and believes that such property is

subject to attachment.

(Code Civ. Proc., § 484.020.)

“The application [for a writ of attachment] shall be

supported by an affidavit showing that the plaintiff on the facts presented

would be entitled to a judgment on the claim upon which the attachment is

based.” (Code Civ. Proc., § 484.030.) Statutory attachment procedures are

purely creations of the legislature and as such “are subject to strict

construction.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 79 (internal

quotations omitted).) A judge does not have authority to order any attachment

that is not provided for by the attachment statutes. (Jordan-Lyon

Productions, Ltd. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459,

1466.) “In contested applications, the court must consider the relative merits

of the positions of the respective parties and make a determination of the probable outcome of the litigation." (Id. at p. 80 (ellipses and internal quotations omitted).)

The Court shall issue a right to attach order if the Court finds all of the following:

1. The

claim upon which the attachment is based is one upon which an attachment may be issued.

2. The

plaintiff has established the probable validity of the claim upon which the attachment is based.

3. The

attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

4. The

amount to be secured by the attachment is greater than zero.

(Code Civ. Proc., § 484.090.)

Discussion

i.

Basis of Attachment and Amount

The Court shall issue a right to

attach order if the claim upon which the attachment is based is one upon which

an attachment may be issued. (Code Civ. Proc., § 484.090.) “[A]n attachment may

be issued only in an action on a claim or claims for money, each of which is

based upon a contract, express or implied, where the total amount of the claim

or claims is a fixed or readily ascertainable amount not less than five hundred

dollars (\$500) exclusive of costs, interest, and attorney’s fees.” (Code Civ.

Proc., § 483.010, subd. (a).)

Plaintiff states that the

attachment may be properly issued in this action on a claim for money, based on

a contract, where the total amount exceeds \$500.00. (Applications, ¶ 3.)

Specifically, Plaintiff seeks to a writ of attachment as to the principal

payment due under the Note (\$300,000.00), plus contractual interest through the

hearing date of August 4, 2026 (\$24,500.00), totaling \$324,500.00.

(Applications, ¶ 8; Hwang Decls., ¶ 14.)

The Court notes that the hearing

date was advanced to today’s date, and thus, Plaintiff must submit amended

Right to Attach Orders reflecting the corrected amount to be attached with the

proper interest calculation.

The Court finds that the writ of

attachment is based on a breach of contract claim for a readily ascertainable amount of money exceeding \$500.00. (See Compl.) Thus, there is a basis for attachment.

ii.

Probable Validity of Plaintiff's Claims

"A claim has 'probable validity'

where it is more likely than not that the plaintiff will obtain a judgment

against the defendant on that claim." (Code of Civ. Proc., §481.190.) "If the

defendant opposes the application, 'the court must then consider the relative

merits of the positions of the respective parties and make a determination of

the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan

(2021) 61 Cal.App.5th 841, 855.)

To state a cause of action for

breach of contract, Plaintiff must be able to establish "(1) the existence of

the contract, (2) plaintiff's performance or excuse for nonperformance, (3)

defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis

West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Plaintiff offers the following

evidence in arguing that Plaintiff's claim has probable validity:

On November 21, 2025, Plaintiff loaned Bella

\$300,000.00, as evidenced by the Note. (Hwang Decls., ¶ 4, Exh. 2.) Under the

Note's terms, Bella agreed to pay Plaintiff an interest payment of \$3,500.00

per month and repay the principal sum of \$300,000 one year from date of deposit.

(Hwang Decls., ¶ 5.)

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The loan was secured by a Second Deed of Trust

on real property located at 15917 Prairie Avenue, Lawndale, CA 90260. (Hwang

Decls., ¶ 4, Exh.) However, no Second Deed of Trust has been recorded to

secure Plaintiff's loan. (Hwang Decls., ¶ 6.)

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Defendants thereafter failed to pay any interest

payments or the principal amount on the loan, despite Plaintiff's demand. (Hwang

Decls., ¶¶ 9-11, Exh. 3.)

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Bella, Bloomfield, WSRE, Kim, and Eric are alter

egos of one another such that their assets were commingled and exchanged

without consideration. (Hwang Decls., ¶ 12.)

No opposition has been

filed.

The Court finds that

Plaintiff has established probable validity of the breach of contract claim.

iii.

Purpose and Bankruptcy Status

In compliance with Code of Civil

Procedure section 484.020, subdivisions (c) and (d), Plaintiff states that 1)

attachment is not sought for a purpose other than the recovery on a claim upon

which the attachment is based, 2) Plaintiff is not seeking attachment of Defendants'

property for any purpose other than recovery for my claim, and 3) Plaintiff has

no information or believe that my claim is discharged or has been stayed by any

bankruptcy proceeding. (Applications, ¶¶ 3-5; Hwang Decls., ¶ 3.)

iv.

Description of the Property

Code of Civil Procedure section

487.010, subdivision (a) states that, where the defendant is a corporation, all

corporate property for which a method of levy is provided in Section 488.300,

et seq. is subject to attachment.

Plaintiff seeks to attach any

property of Defendants. (Applications, ¶ 9(a).)

The following real properties

owned by Bella are subject to attachment: 15917 Prairie Ave Lawndale, CA 90260,

APN 4074-025-017; 8524 Beverlywood St Los Angeles, CA 90034, APN 5065-011-010;

2623 Exposition Pl Los Angeles, CA 90018, APN 5044-023-002; 4804 S Van Ness Ave

Los Angeles, CA 90062, APN 5015-023-002; 1526 E 1st St Los Angeles, CA 90033,

APN 5172-004-022; 1441 S Cloverdale Ave Los Angeles, CA 90019, APN

5070-012-049; 1350 E 94th St Los Angeles, CA 90002, APN 6049-010-034; 2740 S

Sycamore Ave Los Angeles, CA 90016, APN 5049-017-021; 1630 S Ridgeley Dr Los

Angeles, CA 90019, APN 5064-005-006; 2776 Laurel Canyon Pl Los Angeles, CA

90046, APN 5565-001-017; 2454 Johnston St Los Angeles, CA 90031, APN

5208-003-022; 2636 S Normandie Ave Los Angeles, CA 90007, APN 5054-005- 015;

138 N Manhattan Pl Los Angeles, CA 90004, APN 5517-003-014; 1445 S Cloverdale

Ave Los Angeles, CA 90019, APN 5070-012-048; 1432 Malvern Ave Los Angeles, CA

90006, APN 5135-007-007; 13206 S Vermont Ave Gardena, CA 90247, APN 6117-030-005;

4810 Inglewood Blvd Culver City, CA 90230; 2856 Palmer Dr Los Angeles, CA

90065; 3803 Evans St Los Angeles, CA 90027; 857 Milwood Ave Venice, CA 90291;

3373 Cazador St Los Angeles, CA 90065; 1904 W Avenue 30 Los Angeles, CA 90065;

2355 S Dunsmuir Ave Los Angeles, CA 90016; 1240 Journeys End Dr La Canada

Flintridge, CA 91011; 453 Alberta St Altadena, CA 91001; and 3452 Plata St Los

Angeles, CA 90026. (Hwang Decls., ¶ 2.)

The following real property owned

by Bloomfield is subject to attachment: 13330 Bloomfield Ave Norwalk, CA 90650,

APN 8045-008-001 (currently listed for sale). (Hwang Decls., ¶ 2.)

v.

Undertaking

“Before issuance of a writ of

attachment. . .the plaintiff shall file an undertaking to pay the defendant any

amount the defendant may recover for any wrongful attachment by the plaintiff

in the action.” (Code Civ. Proc., § 489.210.)

“Except as provided in

subdivision (b), , the amount of an undertaking filed pursuant to this article

shall be ten thousand dollars (\$10,000).” (Code Civ. Proc., § 489.220, subd.

(a).) “If, upon objection to the undertaking, the court determines that the

probable recovery for wrongful attachment exceeds the amount of the

undertaking, it shall order the amount of the undertaking increased to the

amount it determines to be the probable recovery for wrongful attachment if it

is ultimately determined that the attachment was wrongful.” (Code Civ. Proc., §

489.220, subd. (b).)

Plaintiff has not yet filed an

undertaking. (Applications, ¶ 15.) Defendants do not object to the amount of

the undertaking. Plaintiff is thus required to pay a \$10,000.00 undertaking for

each Application.

Conclusion

Based on the foregoing,

Plaintiff's Applications for Writ of Attachment as to Defendants Bella,

Bloomfield, and WSKRE are granted.

Plaintiff is ordered to post a

\$10,000.00 undertaking for each Application.

As previously stated, Plaintiff must

submit amended Right to Attach Orders reflecting the corrected amount to be

attached with the proper interest calculation based on today's hearing date.